



DATE: January 25, 2024

TO: Directors of Special Education

SUBJECT: Release of the Virginia Alternate Assessment Program (VAAP) Participation Decision-Making Tool and Accompanying Frequently Asked Questions Document

The *Every Student Succeeds Act of 2015* (ESSA) was signed into law in December 2015. The ESSA amended the *Elementary and Secondary Education Act of 1965* and replaced the *No Child Left Behind Act*. Section 1111(b)(2)(D)(i)(I) and Section 1111(b)(2)(D)(ii)(II) of ESSA clarify that states must ensure the total number of students assessed in a subject using the alternate assessment aligns with alternate achievement standards and the state may not exceed one percent of the total number of all students who are assessed in a subject. Virginia continues to exceed this cap for students participating in the Virginia Alternate Assessment Program (VAAP).

To meet this requirement and align with the Virginia Department of Education's (VDOE's) Corrective Action Plan for exceeding the one percent cap for alternate assessment participation, VDOE has recently revised and augmented its guidance regarding VAAP participation. The new [VAAP Participation Decision-Making Tool](#) and its accompanying document, [VAAP Participation Decision-Making Tool: Frequently Asked Questions](#), will replace the former criteria and guidance starting **July 1, 2024**. The purpose of the revisions is to ensure Individualized Education Program (IEP) Teams are identifying the appropriate students for VAAP participation.

While the VAAP is appropriate for students with the most significant cognitive disabilities who meet the participation criteria, each IEP Team must determine the appropriate assessment program for each student. Therefore, it is suggested that any school division staff member who participates in an IEP meeting be familiar with the participation criteria and other aspects of VAAP participation to assist in developing an appropriate IEP for each student.

The VDOE continues to support school divisions to improve the implementation of the VAAP participation guidelines and to ensure that the appropriate students are assessed using this alternate assessment. An introductory recording, [VAAP Participation Decision-Making Tool: Module I](#), has been created to support school divisions in using this new tool. Enter **d^M6HA%G** as the passcode to access the recording. Division personnel, including Special Education Directors, IEP Team members, and school administrators, are encouraged to review the module before implementing the new tool.

Additionally, the VDOE will facilitate four online and live question and answer (Q&A) webinars for school divisions. The dates and information to join are listed below. No pre-registration is required.

- [Friday, February 9, 2024, 9-10 a.m.](#)
 - Webinar ID: 874 8573 3968
 - Passcode: 854815
- [Thursday, February 15, 2024, 3-4 p.m.](#)
 - Webinar ID: 849 4708 6037
 - Passcode: 398246
- [Friday, February 16, 2024, 9-10 a.m.](#)
 - Webinar ID: 874 8573 3968
 - Passcode: 854815
- [Wednesday, February 21, 2024, 3-4 p.m.](#)
 - Webinar ID: 834 1952 0818
 - Passcode: 562531

In transition to this new tool, IEP Teams should start using the tool by July 1, 2024. Additional training on the implementation of the VAAP Participation Decision-Making Tool is forthcoming.

For questions or more information, contact Deborah Johnson, Specialist for Intellectual Disabilities, Office of Instructional Services, at (804) 750-8645 or Deborah.Johnson@doe.virginia.gov; or Jeff Phenicie, Executive Director of Data, Monitoring, and General Supervision, at (804) 750-8145 or Jeff.Phenicie@doe.virginia.gov.